

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DONTAYVEUS THOMAS,

Plaintiff,

-against-

THE CITY OF NEW YORK; P.O. FRANK INGENITO;
P.O. REGINALD SMITH; and P.O. JOHN DOE #1-6 the
individual defendants sued in their individual and official
capacities,

Defendants.
----- X

Index. No.

Purchased _____

Plaintiff designates Kings County as the
place of trial

The basis of the venue is where the tort
arose and where plaintiffs reside

SUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to
serve a copy of your answer, or if the complaint is not served with this summons, to serve
a notice of appearance, on the plaintiffs' attorneys within 20 days after the service of this
summons, exclusive of the day of service (or within 30 days after the service is complete
if this summons is not personally delivered to you within the State of New York); and in
case of your failure to appear or answer, judgment will be taken against you by default
for the relief demanded in the complaint.

Dated: New York, New York
November 18, 2016



Steven E. Lynch, Esq.

Attorney for Plaintiff

The Law Offices of Steven E. Lynch
233 Fifth Avenue, Suite 4A
New York, New York 10016
(718) 858-8737

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DONTAYVEUS THOMAS,

Index. No.

Plaintiff,

VERIFIED COMPLAINT

-against-

Basis of Venue occurrence of
incident: Tompkins Avenue &
Van Buren Street, Brooklyn,
New York

THE CITY OF NEW YORK; P.O. FRANK INGENITO;
P.O. REGINALD SMITH; and P.O. JOHN DOE #1-6 the
individual defendants sued in their individual and official
capacities,

Defendants.

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DONTAYVEUS THOMAS, by his attorney, Steven E. Lynch, Esq., for his complaint
alleges as follows:

1. This is a civil rights and tort action in which Plaintiff Dontayveus Thomas
seeks relief for the violation of his rights secured by the laws of the State of New York, 42
U.S.C. § 1983, the New York Constitution, and the United States Constitution.

2. Plaintiff's claims arise from an incident that occurred on or about August
26, 2015. During the incident, the City of New York, P.O. Frank Ingenito, P.O. Reginald Smith,
and P.O. John Doe #1-6 of the New York City Police Department ("NYPD") subjected plaintiff
to, among other things, unlawful search and seizure, assault, battery, negligence, negligent
infliction of emotional distress, intentional infliction of emotional distress, false arrest, failure to
intervene, and respondeat superior liability.

3. Plaintiff seeks compensatory and punitive damages from the individual
defendants, compensatory damages from the municipal defendant, declaratory relief, an award of

costs, attorney's fees pursuant to 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

4. Within 90 days of the incident alleged in this complaint, plaintiff served upon defendant City of New York a Notice of Claim setting forth the name and post office address of plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed.

5. More than 30 days have elapsed since plaintiff's demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

6. This action is being commenced within one year and ninety days of the date of the occurrence herein. The City of New York stipulated that the plaintiff may commence this action against the City of New York prior to a 50-h Hearing, but must notify the City of New York when plaintiff becomes available to give testimony.

7. Venue is proper in the Supreme Court of the State New York, Kings County, because: the acts in question occurred in the State of New York, Kings County; the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, Kings County; and the amount in recovery exceeds the jurisdictional levels of all lower courts.

PARTIES

8. Plaintiff Dontayveus Thomas is an African-American resident of the State of New York and currently resides in Kings County.

9. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

10. At all times alleged herein, defendants P.O. Frank Ingenito, P.O. Reginald Smith, and P.O. John Doe #1-6 were New York City Police Officers employed with the 79th Precinct, located in Kings County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

11. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

12. P.O. Frank Ingenito, P.O. Reginald Smith, and P.O. John Doe #1-6 at times acting in concert, and at times acting independently, committed the following illegal acts against plaintiff.

13. On August 26, 2015, at approximately 2:00 a.m., at and in the vicinity of Tompkins Avenue and Van Buren Street, Brooklyn, New York, defendants unlawfully seized and searched plaintiff without consent, an arrest warrant, a search warrant, probable cause, or reasonable suspicion that plaintiff committed any offense.

14. Defendants P.O. Ingenito and P.O. Smith pulled over a taxicab that was transporting plaintiff.

15. Plaintiff exited and walked away from the taxicab after it stopped.

16. Defendants P.O. Ingenito and P.O. Smith yelled "stop or we're going to shoot."

17. A police officer, believed to be Defendant P.O. Ingenito, pursued plaintiff on foot.

18. A police officer, believed to be Defendant P.O. Smith, pursued plaintiff in a police vehicle.

19. Plaintiff ran briefly, but stopped after P.O. Smith attempted to strike plaintiff with the police vehicle.

20. Defendants P.O. Ingenito and P.O. Smith slammed plaintiff to the ground, punched and kicked plaintiff, asked plaintiff “you like running?”

21. Defendants handcuffed plaintiff and placed him in a police vehicle, but did not seatbelt or secure plaintiff or secure the door to the police vehicle that transported plaintiff.

22. Defendants drove the police vehicle at a high rate of speed and turned corners at an unsafe speed.

23. Plaintiff told defendants that the doors to the police vehicle were not secured. Defendants told plaintiff to “shut up.”

24. In the vicinity of Tompkins Avenue and Van Buren Street, the police vehicle's door opened, ejecting plaintiff from the police vehicle and causing further injury.

25. Defendants punched and kicked plaintiff after his ejection from the police vehicle, inflicting further injury on plaintiff.

26. As a result of defendants’ actions, plaintiff suffered injuries, including but not limited to: a broken wrist, back pain, shoulder pain, facial pain, and bruises to his body,

27. Defendants arrested plaintiff and took plaintiff to Woodhull Hospital for emergency medical treatment.

28. Upon information and belief, the unlawful actions against plaintiff were also based on profiling.

29. Plaintiff was arraigned in Brooklyn Criminal Court and incarcerated on Rikers Island.

30. All state criminal charges were dismissed.

GENERAL ALLEGATIONS

31. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

32. The defendants had no credible or objective reason to believe that plaintiff violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to the above incidents.

33. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

34. As a direct and proximate result of defendants' actions, plaintiff experienced personal injuries, loss of liberty, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, and humiliation

35. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM FOR RELIEF

(For Unlawful Seizure Under New York Constitution Against the City of New York, P.O. Ingenito, P.O. Smith, And P.O. John Doe #1-6)

36. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

37. Defendants P.O. Frank Ingenito, P.O. Reginald Smith, and P.O. John Doe #1-6 unlawfully seized plaintiff without a warrant, probable cause, or consent.

38. Defendants P.O. Frank Ingenito, P.O. Reginald Smith, and P.O. John Doe #1-6 unlawfully seized plaintiff with unreasonable force.

39. Accordingly, defendants are liable to plaintiff for defendants' unlawful seizure under the New York State Constitution Article I, § 12.

SECOND CLAIM FOR RELIEF

(For Unlawful Search Under New York Constitution Against the City of New York, P.O. Ingenito, P.O. Smith, And P.O. John Doe #1-6)

40. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

41. Defendants P.O. Frank Ingenito, P.O. Reginald Smith, and P.O. John Doe #1-6 unlawfully searched plaintiff without a warrant, probable cause, or consent.

42. Accordingly, defendants are liable to plaintiff for defendants' unlawful search under the New York State Constitution Article I, § 12.

THIRD CLAIM FOR RELIEF

(For Assault Against the City of New York P.O. Ingenito, P.O. Smith, P.O. John Doe #1-6)

43. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

44. As described above, the actions of P.O. Ingenito, P.O. Smith, and P.O. John Doe #1-6 placed plaintiff in fear of imminent harmful and offensive physical contacts.

45. Accordingly, Defendants are liable to plaintiff under New York state law for assault.

FOURTH CLAIM FOR RELIEF

(For Battery Against the City of New York, P.O. Ingenito, P.O. Smith, And P.O. John Doe #1-6)

46. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

47. As described above, the actions of P.O. Ingenito, P.O. Smith, and P.O. John Doe #1-6 constituted non-consensual offensive physical contacts which injured plaintiff.

48. Accordingly, Defendants are liable to plaintiff under New York state law for battery.

FIFTH CLAIM FOR RELIEF

(For Negligent Performance of Duties Against All Defendants)

49. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

50. The individual police officers, acting within the scope of their employment, negligently discharged their duties and thereby caused plaintiff to sustain the injuries and deprivations aforementioned.

SIXTH CLAIM FOR RELIEF

(For Negligent Infliction of Emotional Distress Against the City of New York, P.O. Ingenito, P.O. Smith, And P.O. John Doe #1-6)

51. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

52. Defendants the City of New York, P.O. Ingenito, P.O. Smith, and P.O. John Doe #1-6 negligently inflicted emotional harm upon plaintiff.

53. The Defendants' actions against plaintiff were extreme and outrageous and caused plaintiff severe emotional distress.

54. Defendants City of New York, P.O. Ingenito, P.O. Smith, and P.O. John Doe #1-6 breached a duty owed to plaintiff that either unreasonably endangered plaintiff's physical safety, or caused plaintiff to fear for his own safety.

55. Accordingly City of New York, P.O. Ingenito, P.O. Smith, and P.O. John Doe #1-6 are liable to plaintiff under New York state law for negligent infliction of emotional distress upon plaintiff.

SEVENTH CLAIM FOR RELIEF

(For Intentional Infliction of Emotional Distress Against the City of New York, P.O. Ingenito, P.O. Smith, And P.O. John Doe #1-6)

56. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

57. Defendants City of New York, P.O. Ingenito, P.O. Smith, and P.O. John Doe #1-6 intentionally inflicted emotional harm upon plaintiff.

58. The Defendants' actions against plaintiff were extreme and outrageous and caused plaintiff severe emotional distress.

59. Accordingly City of New York, P.O. Ingenito, P.O. Smith, and P.O. John Doe #1-6 are liable to plaintiff for intentional infliction of emotional distress upon plaintiff.

EIGHTH CLAIM FOR RELIEF

(For False Arrest under State Law Against the City of New York, P.O. Ingenito, P.O. Smith, And P.O. John Doe #1-6)

60. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

61. As a result of defendants' aforementioned conduct, the plaintiff was subjected to an illegal, improper, and false arrest. The plaintiff was taken into custody and caused to be falsely imprisoned, detained, confined, and incarcerated. In the above-mentioned

actions, defendants acted intentionally, willfully, with malice, and without probable cause, privilege or consent.

62. Plaintiff was conscious of his confinement.

63. As a result of the foregoing, plaintiff's liberty was restricted in filthy and degrading conditions for an extended period of time, plaintiff was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

64. By virtue of the foregoing, the defendants deprived the plaintiff of his rights under the law of the State of New York.

NINTH CLAIM FOR RELIEF

(For Respondeat Superior Against the City of New York)

65. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

66. The individual defendants were acting within the scope of their employment as New York City Police Officers when they committed the above described acts against plaintiff.

67. Accordingly, the City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

TENTH CLAIM FOR RELIEF

*42 U.S.C. § 1983 - Fourth Amendment Violation for Excessive Force
(Against the Individual Officer Defendants)*

68. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

69. While in the course of their official duties and acting under color of law, defendants intentionally used excessive physical force against plaintiff, including but not limited to punching the plaintiff with a closed fist, slamming plaintiff to the ground, and kicking

plaintiff.

70. The physical attack of the individual officer defendants on plaintiff was objectively unreasonable.

71. The individual officer defendants' use of excessive physical force caused injuries to the plaintiff, including but not limited to, emotional distress, bruising, and pain to his face and body, and broken bones.

72. By virtue of the foregoing, the defendants deprived the plaintiff of his Fourth Amendment rights under the United States Constitution to be free from unreasonable seizures of his person and are liable to plaintiff under 42 U.S.C. §1983.

ELEVENTH CLAIM

*42 U.S.C. § 1983-Fourth Amendment Violations for Failure to Intervene
(Against the Individual Officer Defendants)*

73. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

74. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights.

TWELFTH CLAIM FOR RELIEF

*Municipal Liability
(Against Defendant City)*

75. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

76. The City's continuing failure to deter police misconduct has led to ever increasing numbers of lawsuits for repeated misconduct by the same officers, same units, and

same precincts. In the fiscal year of 2012, there were 2,004 tort cases commenced against the New York City Police Department, up from 1,425 tort cases commenced for the fiscal year of 2008.¹ The City of New York has paid at least \$80 million for torts against the New York City Police Department since the fiscal year of 2008, peaking in fiscal year of 2009 when it paid out more than \$117 million.¹ In the past ten years, the City of New York has paid nearly a billion dollars on lawsuits brought against the NYPD.²

77. The widely held assumption is that civil rights lawsuits deter police misconduct. “The purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails.” Wyatt v. Cole, 504 U.S. 158, 161, (1992) citing Carey v. Piphus, 435 U.S. 247, 254-257, (1978). “As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts.” See Hudson v. Michigan 547 U.S. 586, 598 (2006) citing Correctional Services Corp. v. Malesko, 534 U.S. 61, 70 (2001) and Nix v. Williams, 467 U.S. 431, 446, (1984). “It is almost axiomatic that the threat of damages has a deterrent effect (citation omitted) surely particularly so when the individual official faces personal financial liability.” Carlson v. Green, 446 U.S. 14, 21, (1980), citing Imbler v. Pachtman, 424 U.S. 409, 442, and footnote 6 (1976).

¹ Fiscal 2013 Preliminary Mayor's Management Report for the New York City Police Department, available at www.nyc.gov/html/ops/downloads/pdf/mmr0912/nypd.pdf, see page 5, last visited on January 24, 2014.

² “NYPD gives quite the payday; AP report reveals police have doled out \$1B to resolve lawsuits,” by Associated Press Writers Colleen Long and Jennifer Peltz via Daily News wire Report, <http://www.nydailynews.com/new-york/nypd-payday-ap-report-reveals-police-dolled-1b-resolve-lawsuits-article-1.189671>, October 15, 2010 last visited on January 27, 2014.

78. However, the City of New York has isolated NYPD officers like defendant police officers from accountability for civil rights lawsuits by indemnifying officers who violate the constitutional rights of citizens, and, as a result, is preventing civil rights lawsuits from having any deterrent value to the City, the NYPD or its officers. Civil rights lawsuits against police officers have no impact on the officers' careers, regardless of the expense to the City of the officers' lawsuit liability, even after multiple lawsuits. In 1999, former Comptroller Alan Hevesi reported that there was a "a total disconnect" between the settlements of even substantial civil claims and police department action against officers.³ This "total disconnect" between officers' liability and NYPD discipline, results in a system where the City pays vast sums to settle false arrests, but the NYPD does nothing to investigate nor address the underlying causes of such false arrests or officers who have incurred large sums of civil rights liability.

79. The City Council, Government Operations Committee, despite being alerted at a City Council hearing on December 12, 2009, and on other occasions, to the obvious problem of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability, has failed to take action to hold officers or precincts accountable. It has likewise failed to hold an investigative hearing into what extent specific officers, units and precincts are disproportionately responsible for New York City civil rights lawsuits.

80. Nevertheless, the City has repeatedly resisted attempts to catalog even basic information gleaned from civil rights lawsuits that could improve training, leadership,

³ Bob Hennelly's WNYC report, "Amid City Budget Crisis, New Scrutiny on Millions in NYPD Settlements" from June 8, 2011: <http://www.wnyc.org/articles/its-free-country/2011/jun/08/amid-city-budget-grappling-new-scrutiny-millions-nypd-settlements/>, last visited on January 27, 2014.

supervision, and discipline in the NYPD. The City's deliberate indifference towards the contents of civil rights litigation, individual officers repeatedly named in lawsuits, incidents repeatedly occurring in the same division, and patterns of misconduct that arise in civil rights litigation has caused the constitutional violations of excessive force and false arrest suffered by the plaintiff.

81. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct or to calculate the total liability of an individual officer or of a precinct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even occasional judicial findings that officers have testified incredibly are not reported routinely to the police department or any oversight agencies.

82. All of the aforementioned has created a climate where police officers and detectives lie to prosecutors and in police paperwork and charging instruments, and testify falsely, with no fear of reprisal. "Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration-through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department-there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged." See Colon v. City of New York, et al, 2009 WL 4263362 (E.D.N.Y.) (Weinstein, J.).

83. In Floyd v. City of New York, 08-cv-01034-SAS-HBP, Judge Scheindlin found that the City acted with "deliberate indifference toward the NYPD's practice of making unconstitutional stops and conducting unconstitutional frisks" and adopted "a policy of indirect racial profiling by targeting racially defined groups for stops based on local crime suspect data." (Opinion and Order, dated August 12, 2013, P.13).

84. The City is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate plaintiff's civil rights, without fear of reprisal.

85. Plaintiff has been damaged as a result of the deliberate indifference of the Defendant City.

WHEREFORE, Plaintiff demands a jury trial and judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action.

Dated: New York, New York
November 18, 2016



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Attorney for Plaintiff
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steven@stevenelynych.com

VERIFICATION

I, DONTAYVEUS THOMAS, state under the oath, that I am the deponent and plaintiff in this action, and that the pleading is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.


DONTAYVEUS THOMAS

STATE OF NEW YORK)

: ss:

COUNTY OF KINGS)

On the 19th day of November, 2016, before me personally came and appeared DONTAYVEUS THOMAS to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.


NOTARY PUBLIC

STEVEN E. LYNCH
NOTARY PUBLIC, State of New York
No. 02LY6261890
Qualified in Kings County
Commission Expires May 29, 2016 20